Supreme Court, U.S.
FILED
JUN 19 1998
CLERK

No. 97-930

In The

Supreme Court of the United States

October Term, 1997

VICTORIA BUCKLEY, Colorado Secretary of State,

Petitioner,

vs.

AMERICAN CONSTITUTIONAL LAW FOUNDATION, INC., DAVID AITKEN, JON BARAGA, CRAIG ELEY, JACK HAWKINS, LONNIE HAYNES, ALDEN KRAUTZ, BILL ORR, individually and as the Parent and Guardian of WILLIAM DAVID ORR,

Respondents.

On Writ Of Certiorari To The United States Court Of Appeals For The Tenth Circuit

BRIEF OF RESPONDENTS DAVID AITKEN, JON BARAGA, AND BILL ORR, as the Parent and Guardian of WILLIAM DAVID ORR

KERRY S. HADA*
KERRY S. HADA, P.C.
7450 East Progress Place
Englewood CO 80111
Telephone (303) 771-3030

PAUL GRANT, *Pro Hac Vice*
19039 E. Plaza Drive, # 260E
Parker CO 80134
Telephone (303) 841-9649

**Counsel of Record*

COCKLE LAW BRIEF PRINTING CO., (800) 225-6964
OR CALL COLLECT (402) 342-2831

QUESTIONS PRESENTED FOR REVIEW

Whether the State of Colorado may constitutionally regulate the process of circulating initiative and referendum petitions by requiring that (1) initiative and referendum petition circulators must be registered electors; (2) initiative and referendum petition circulators must wear identification badges; and (3) proponents of an initiative must file periodic reports disclosing the amounts paid to initiative and referendum circulators and the identity and residence and business address of each paid initiative and referendum circulator.

TABLE OF CONTENTS

Page

QUESTIONS PRESENTED FOR REVIEW i

STATEMENT OF THE CASE 1

SUMMARY OF ARGUMENT 8

ARGUMENT 12

I. COLORADO'S REGULATIONS OF THE INITIATIVE PROCESS TRENCH UPON CORE POLITICAL ACTIVITY, INCLUDING SPEECH, ASSOCIATION, ASSEMBLY, AND PETITIONING, WHERE FIRST AMENDMENT PROTECTIONS ARE AT THEIR ZENITH 12

II. COLORADO'S PROHIBITION OF PETITION CIRCULATION BY ANYONE OTHER THAN REGISTERED VOTERS IS A RESTRAINT ON SPEECH AND THE RIGHT OF PETITION ... 30

III. COLORADO'S REQUIREMENT THAT PETITION CIRCULATORS WEAR IDENTIFICATION BADGES IS OFFENSIVE, AND IT IS A RESTRAINT ON POLITICAL SPEECH AND ACTION 35

IV. COLORADO'S REPORTING REQUIREMENTS REQUIRING REPORTS OF AMOUNTS PAID TO CIRCULATORS AND THE IDENTITY OF PAID CIRCULATORS, BURDEN FIRST AMENDMENT-PROTECTED ACTIVITIES 39

CONCLUSION 41

TABLE OF AUTHORITIES

Page

CASES

American Constitutional Law Foundation v. Meyer, 120 F.3d 1092 (10th Cir. 1997) 11, 22

Anderson v. Celebrezze, 460 U.S. 780 (1983) 13

Bill Johnson's Restaurants, Inc. v. NLRB, 461 U.S. 731 (1983) 17

Biddulph v. Mortham, 89 F.3d 1491 (11th Cir. 1996) 13, 14, 15, 16, 17, 18

Bridges v. California, 314 U.S. 252 (1941) 17

Buckley v. Valeo, 424 U.S. 1 (1975) 12, 21

Burdick v. Takushi, 504 U.S. 428 (1992) 13

Citizens Against Rent Control v. City of Berkeley, 454 U.S. 290 (1981) 21

Eastern Railroad Presidents Conference v. Noerr Motor Freight, Inc., 365 U.S. 127 (1961) 18

Edwards v. South Carolina, 373 U.S. 229 (1963) 17

First National Bank of Boston v. Bellotti, 435 U.S. 765 (1978) 12, 21

Grant v. Meyer, 828 F.2d 1446 (10th Cir. 1987) 16

In re Proposed Petition on Petition Procedures, 900 P.2d 104 (Colo. 1995) 7

McDonald v. Smith, 472 U.S. 479 (1985) 17, 19

McIntyre v. Ohio Election Commission, 514 U.S. 334, 115 S.Ct. 1511 (1995) 13, 21, 35, 36

Meyer v. Grant, 486 U.S. 414 (1988) ..... *passim*

NAACP v. Claiborne Hardware, 458 U.S. 886 (1982) 17

TABLE OF AUTHORITIES – Continued

Page

People ex rel. Elder v. Sours, 31 Colo. 369, 74 P. 167 (1903) 35

Posadas de Puerto Rico Associates v. Tourism Co. of Puerto Rico, 478 U.S. 328 (1986) 14

Public Rights in Waters II, 898 P.2d 1076 (Colo. 1995) 7

Thomas v. Collins, 323 U.S. 516 (1945) 19, 38

Timmons v. Twin Cities Area New Party, 117 S.Ct. 1364 (1997) 13, 20

Uphaus v. Wyman, 360 U.S. 72 (1958) 39, 40

CONSTITUTIONS

Art. V, sec. 1, Colo. Const. 16

Art. V, sec. 1(1), Colo. Const. 18

Art. V, sec. 1(3), Colo. Const. 7

STATUTES

C.R.S. § 1-4.101 *et seq.* 5

C.R.S. § 1-40-108. 6

C.R.S. § 1-40-111(2) 2, 42

C.R.S. § 1-40-112(1) 2, 10, 31

C.R.S. § 1-40-112(2)(a) 3

C.R.S. § 1-40-112(2)(b) 3

C.R.S. § 1-40-116(1) 2

C.R.S. § 1-40-121. 41

TABLE OF AUTHORITIES – Continued

Page

C.R.S. § 1-40-130(1)(h) 2, 10, 31

C.R.S. § 1-40-130(2) 2

Colorado Enabling Act, § 4, C.R.S. v. 1, pp. 24-27 (1997) 25

OTHER AUTHORITIES

Blackstone's *Commentaries*, bk. 1, ch.1, sec. 3 17

Declaration of Independence 25

Democracy by Initiative: Shaping California's Fourth Branch of Government (Center for Responsive Government, 1992) 23

Democracy in America, A. de Tocqueville (Harper and Row 1966) 26, 27, 29, 30

The Federalist No. 51 (Madison or Hamilton) (Modern Library ed. 1937) 27, 28

Letter from Jefferson to Madison, March 15, 1789 29

STATEMENT OF THE CASE

The American Constitutional Law Foundation, Inc., and the individual Respondents listed above (henceforth, collectively, "ACLF"), as plaintiffs in the District Court, challenged several of Colorado's statutory provisions regulating the initiative and referendum process in Colorado, relying primarily (but not exclusively) on the principles established by this Court in *Meyer v. Grant*, 486 U.S. 414 (1988). Premising its challenge on the principles that initiative and referendum petitions involve core political speech, that promoting and circulating petitions involve core political speech and action, and that the entire process, from conception of the proposal for political change, to drafting the proposal and presenting it in petition form to Colorado citizens to first sign, and later vote on, invokes First Amendment protections of the right to petition for redress of grievances, ACLF presented evidence and arguments showing that each of Colorado's challenged regulations violated the First Amendment rights of respondents.

ACLF challenged Colorado's prohibition against persons who are not registered voters from circulating initiative or referendum petitions in Colorado. This prohibition was found by the Tenth Circuit to exclude some 400,000 qualified electors (persons not registered to vote, but eligible to register) plus unknown additional numbers of persons under 18. Pet. App. A, at 29. Colorado at the time of trial had some 1,900,000 registered voters. Tr. II, at

159.[1] The District Court upheld this prohibition, but the Tenth Circuit divided the issue, finding the prohibition unconstitutional for prohibiting qualified electors from circulating, but finding that the prohibition against "under-age" circulators was a legitimate state restriction.

Respondent Bill Orr was a qualified elector – but not a registered voter – seeking the right to circulate petitions. Tr. I, at 223-224. He is also the executive director of the American Constitutional Law Foundation, Inc., a non-profit organization supporting the petition processes of initiative, referendum, and recall. *Id.*, at 229. Bill Orr's son, William David Orr, testified as an "under-age" (*i.e.*, less than 18) respondent seeking the freedom to circulate petitions. *Id.*, at 3-4. Colorado's prohibition against under-age circulators or against non-registered electors as circulators, not only invalidates any signatures gathered by such persons (Colorado Revised Statutes ("C.R.S.") §§ 1-40-111(2), -112(1), -116(1), it also exposes such persons (or any person falsely swearing to have gathered the signatures actually gathered by an unqualified circulator) to possible criminal prosecution. C.R.S. §§ 1-40-130(1)(h), -130(2).

ACLF also challenged the Colorado requirement that all (ballot issue) petitioners wear identification badges when petitioning, a requirement that distinguished between unpaid petitioners (name identification and

---

[1] The trial below was a 2 day trial to the court. Transcripts from the trial will be referred to by day number, then page number, *e.g.*, Tr. I, at 1. The transcripts are found in the record from the Tenth Circuit at *Pro Se* Plaintiff's Appendix I and II.

"VOLUNTEER CIRCULATOR" required) and hired petition circulators (name identification plus "PAID CIRCULATOR", plus name and telephone number of employer required). *See* C.R.S. §§ 1-40-112(2)(a), -112(2)(b). ACLF presented evidence that some individuals would be intimidated by the requirement for name badges, others would be offended, with both groups less likely to be willing to participate.

Respondent Jon Baraga testified concerning his efforts over several years to promote an initiative – "Colorado Hemp Initiative" – to legalize marijuana in Colorado. Tr. I, at 53-54. Baraga testified that many of his supporters would be uncomfortable with or apprehensive about wearing identification badges. *Id.*, at 59-60. He also testified that many of his initiative's supporters were not registered electors: "[T]here are a great many folks who are refused to participate as registered voters in the political process who would like to see our measure gain ballot status and would like to help us do that." *Id.*, at 57.

Witness Paul Grant (lead plaintiff earlier in *Meyer v. Grant*) testified that during his group's efforts to deregulate transportation in Colorado, many supporters who were in the transportation business avoided publicly identifying with the measure (even before the badge requirement was instituted in 1993), because of fear of reprisals from economic competitors (who could protest their requests to the P.U.C. for expanded authority) or of adverse reaction from the Public Utilities Commission, which regulated all transportation for hire, and whose authority they were seeking to diminish. Grant testified that:

> The people most involved in the industry were the people most leery of being publicly identified as being associated with us. They didn't want their names, for the most part, listed on our letterhead. They didn't want to contribute money because their names would be reported to the State and they didn't want to circulate petitions too openly because they were afraid it might have repercussions against them in future dealings with their competitors and with the Public Utilities Commission which regulates them. . . . [M]any of these people promised to give us financial support once we showed that we could get on the ballot when it was more clear that we had a chance to prevail and to win. So, they were not willing to help us until we already got on the ballot. They thought it was too dangerous.

Id., at 126-127.

Grant also testified that he was personally offended by the badge requirement, and that he would not violate the law, he simply would not circulate a petition while the requirement was law:

> No, I would not wear a badge. . . . I don't believe that I have to ask anyone's permission to exercise political speech and I don't have to go through a process like that. . . . I would not circulate because I don't want to go to jail. And I won't wear the badge because I don't think it's right. . . . I will not petition under these laws because I am not willing to risk arrest.

Id., at 133.

Grant knew of the dangers of Colorado's criminal sanctions for violating petition circulation laws, having

been personally exposed to the risk of prosecution for conduct of an initiative petition drive, during circulation of an earlier initiative, an exercise which led to his challenge to Colorado's ban on paid circulators, which in turn led to *Meyer v. Grant*, 486 U.S. 414 (1988). In 1984, after the head of a trucking company filed a complaint with the Secretary of State concerning payments in conjunction with circulation, an undercover operative from the Colorado Attorney General infiltrated Grant's initiative effort to deregulate transportation, evidence was gathered, and subsequently a hearing was held before the Colorado Secretary of State, resulting in the Secretary of State referring Grant and his organization to the Attorney General for possible criminal prosecution. Tr. I, at 131, 136. Grant's organization had been paying petition "advocates" (persons who stood alongside the petition circulator and "advocated" the petition, while the circulator collected signatures), not circulators, thus "separating" speech from circulation, attempting to avoid Colorado's ban on payments to circulators. *Id.*, at 136.

Respondent David Aitken, an activist within the Libertarian Party, and a former candidate, testified that, based on his experience and personal knowledge, candidate petition circulators in Colorado were not required to wear any identification badges.[2] *Id.*, at 115.

---

[2] Colorado's regulations for candidate petitions can be found at C.R.S. § 1-4-101 *et seq.*, and there are no requirements imposing identification badge requirements on candidate petition circulators. Colorado's identification badge requirements exist only for initiative and referendum (*i.e.*, ballot issue) petition circulators.

Respondents Jack Hawkins and Craig Eley were labor activists, seeking to change worker's compensation laws through the initiative process. *Id.*, at 8-9 (Hawkins President of Denver Area Labor Foundation).

The trial court found the voter registration requirement not subject to his review at all. Pet. App. B, at 22.[3] The 10th Circuit invalidated the registration requirement, finding it discriminated against certain speakers, curtailed speech, and failed to survive strict scrutiny. Pet. App. A, at 28-29. The trial court and the 10th Circuit agreed that the badge requirements burdened speech and were offensive to the First Amendment. Pet. App. B, at 20-21; Pet. App. A, at 36-37. Reporting and disclosure requirements concerning paid petition circulators were also challenged by ACLF. These are found at C.R.S. § 1-40-121. The trial court and the 10th Circuit again agreed that these requirements burdened speech, were not narrowly tailored, and violated the First Amendment. Pet. App. B, at 24; Pet. App. A, at 39-41.

Other restrictions were challenged as burdens on the speech or the right to petition of ACLF, including Colorado's requirement that all signatures for a ballot measure be gathered within a (maximum) six month time period (C.R.S. § 1-40-108), and the provision which allows Colorado's legislature to discriminate against referenda on an ad hoc basis, by attaching a "safety clause" (a

[3] Petitioner included the District Court opinion (reported at 870 F.Supp. 995 (D.Colo. 1994)) in the appendix to her petition for certiorari, and it will be referred to as Pet. App. B; the 10th Circuit Opinion (reported at 120 F.3d 1092 (10th Cir. 1997)) was also included, and will be referred to as Pet. App. A.

legislative finding that a bill is necessary for the immediate preservation of the public peace, health, or safety) to most bills passed in Colorado, an act which exempts all such legislative enactments from citizen referenda. *See* Art. V, sec. 1(3), Colo. Const. The 10th Circuit found the six month circulation period "reasonable," and found the legislative "safety clause" procedure "unreviewable", and found neither offensive to the First Amendment. Pet. App. A, at 26, 45.

Colorado presented testimony or argument that all of the challenged restrictions were reasonable regulations on the initiative and referendum process. Colorado now additionally argues, for the first time, in Petitioner's Brief, that Colorado protects the right of citizen initiative jealously and that Colorado is, essentially, the initiative's best friend. Pet. Brief at 24-26. This argument was not part of the case at the trial level, where ACLF could have brought forth voluminous evidence to show that Colorado has in recent years been aggressively curtailing the citizen's right to initiative.[4]

[4] ACLF did show examples of how the Secretary of State had attempted to invalidate large numbers of valid petition signatures. Tr. I, at 205-206. As an example of Colorado's increasing hostility to citizen initiatives, one need only look to Colorado's newly imposed "single subject" requirement for initiatives, passed in 1994. Initiative opponents challenge controversial initiatives for single subject violations, and Colorado's Supreme Court has in the past 3 years disqualified numerous initiatives for being "too complex" for voters to consider, finding they contain more than one subject. *See, e.g., In re Proposed Petition on Petition Procedures*, 900 P.2d 104 (Colo. 1995) (contained multiple subjects, dealing with recall, referendum and initiative petitions); *Public Rights in Waters II*,

This patronizing argument was also not presented to the 10th Circuit, and should not be considered for the first time at this stage.

SUMMARY OF THE ARGUMENT

I. COLORADO'S REGULATIONS OF THE INITIATIVE PROCESS TRENCH UPON CORE POLITICAL ACTIVITY, INCLUDING SPEECH, ASSOCIATION, ASSEMBLY, AND PETITIONING, WHERE FIRST AMENDMENT PROTECTIONS ARE AT THEIR ZENITH.

Colorado tries to, but cannot avoid the implications of this Court's unanimous decision in *Meyer v. Grant*, 486 U.S. 414 (1988). *Meyer* teaches that the initiative process involves core political activity, including speech, association, assembly, and petitioning for redress of grievances, areas where First Amendment protections are at their zenith. Any state burdens on such fundamental rights are unjustified without a showing of a compelling state interest and a showing that the state's restrictions are narrowly tailored to burden no more First Amendment activity than necessary. Isolated instances of problems and speculative concerns are not sufficient to justify intrusions on these fundamental rights of political action. Abuses of a fundamental right can be dealt with without curtailing exercise of the right.

---

898 P.2d 1076 (Colo. 1995) (multiple subjects because established public trust doctrine in water rights and changed water district election procedures to insure doctrine properly implemented by election officials).

Colorado argues now – as it attempted in *Meyer* – that it has a broad latitude to regulate the initiative process, and that its regulations are reasonable, not burdening First Amendment activity. Colorado would persuade this Court that it should treat the regulations at issue in this case, as ballot access regulations, and that the Court should then borrow standards of review developed in candidate and political party ballot access cases, rather than subject Colorado's challenged regulations to the review typically utilized in ballot issue cases, the strict scrutiny review appropriate for restrictions on core political speech, petitioning, and political action.

ACLF will show that the regulations at issue chill speech, reduce the number of voices which can legally be raised to present the initiative petitions, interfere with petition proponents' rights of assembly and association, and intrude upon and suppress ACLF's right to petition for redress of grievances. The challenged regulations not only procedurally interfere with and stifle exercise of First Amendment rights. They also carry criminal sanctions for willful violations.

Colorado's "justifications" for the challenged regulations will be shown to result from a hostility against citizen initiatives, from a desire to "police" protected political speech and activity, and from a disdain for "direct democracy" (*i.e.*, popular sovereignty). Colorado's supposed "justifications" for its restrictions, will be shown to be non-compelling and not narrowly tailored.

II. COLORADO'S PROHIBITION OF PETITION CIRCULATION BY ANYONE OTHER THAN REGISTERED VOTERS IS A RESTRAINT ON SPEECH AND THE RIGHT OF PETITION.

Qualified electors (eligible to register as voters, but not registered) may not circulate petitions, non-residents may not circulate petitions, and citizens under 18 may not circulate petitions, seeking signatures from Colorado's citizens to place a ballot measure before Colorado's voters. As this Court held previously in *Meyer v. Grant*, 486 U.S. 414 (1988), petition circulation involves the advocacy of what the initiative proposes, it involves core political speech. It is also a part of ACLF's actions in petitioning for redress of grievances. The First Amendment-protected rights of free speech, assembly, and petitioning are "cognate" rights, deserving of similar protection. Any unqualified person (under 18 years of age, a non-resident, an unregistered elector) is guilty of a criminal offense for circulating a petition, if their action is willful. *See* C.R.S. §§ 1-40-112(1), 1-40-130(1)(h).

Colorado's concern for the "integrity" of elections cannot justify its restrictions, prohibitions, and criminal sanctions on petition circulation by persons who are not registered voters. There is no voter registration, age or residency requirement in the First Amendment.

III. COLORADO'S REQUIREMENT THAT PETITION CIRCULATORS WEAR IDENTIFICATION BADGES IS OFFENSIVE, AND IT IS A RESTRAINT ON POLITICAL SPEECH AND ACTION.

As the 10th Circuit ruled below, in *American Constitutional Law Foundation v. Meyer*, 120 F.3d 1092 (10th Cir. 1997), requring each [initiative] petition circulator to wear an identification badge violates the circulator's right to engage in anonymous speech. This has a chilling effect on political speech, resulting in less political speech, thus less advocacy for the petition, especially for controversial initiative proposals. Colorado (and its supporting *amici* from Washington and other states) argues that it wishes to – in effect – police the advocacy of [initiative] petition circulators, and that identification badges will further that state purpose. Pet. Brief at 37-38; States Am. Brief at 23. That might be true, and, if so, would offer a clinching argument why the regulation is inconsistent with the First Amendment.

IV. COLORADO'S REPORTING REQUIREMENTS REQUIRING REPORTS OF AMOUNTS PAID TO CIRCULATORS AND THE IDENTITY OF PAID CIRCULATORS BURDEN FIRST AMENDMENT-PROTECTED ACTIVITIES.

The Tenth Circuit below also found that Colorado's reporting requirements for amounts paid to circulators, and of the identity of paid circulators, failed to survive exacting scrutiny, because the requirements were not narrowly tailored to serve legitimate state interests.

Colorado again argues these regulations are merely reasonable ballot access regulations and that, essentially, Colorado can do as it pleases in this area.

ACLF will show that the Tenth Circuit was correct in finding these regulations burden expressive rights, and that this Court, in two previous cases (*Buckley v. Valeo*, 424 U.S. 1 (1976), *First National Bank of Boston v. Bellotti*, 435 U.S. 765 (1978)), laid out the requirements to justify such restrictions, and that Colorado failed to justify its restrictions.

ARGUMENT

I. COLORADO'S REGULATIONS OF THE INITIATIVE PROCESS TRENCH UPON CORE POLITICAL ACTIVITY, INCLUDING SPEECH, ASSOCIATION, ASSEMBLY, AND PETITIONING, WHERE FIRST AMENDMENT PROTECTIONS ARE AT THEIR ZENITH.

In reviewing a First Amendment challenge to election laws, the court must first determine the appropriate standard of review. Colorado suggests that this is simply a ballot access case, where reasonable regulations are permitted as long as they are rationally related to a legitimate state purpose.

Colorado argued to the 10th Circuit, that its regulations were reasonable "ballot access" regulations, and that ballot access cases should be looked to in order to determine the appropriate standard of review of the regulations challenged in this case. The 10th Circuit discussed

Colorado's arguments, and then applied different standards of review to different challenged regulations.

The 10th Circuit struck down three challenged restrictions, each time applying exacting scrutiny, and finding each restriction unconstitutional. The 10th Circuit struck down the requirement that circulators be registered voters, relying on *Meyer v. Grant*. Pet. App. A, at 29-30. The 10th Circuit struck down the requirement petition circulators wear identification badges, relying on *McIntyre v. Ohio Election Commission*, 514 U.S. 334, 115 S.Ct. 1511 (1995), and on *Meyer v. Grant*. Pet. App. A, at 36-38. They then struck down the reporting requirements, relying on *Buckley v. Valeo*. Pet. App. A, at 38-41. ACLF will point out that each of these restrictions was invalidated by the 10th Circuit upon that Court finding that the subject restriction did indeed restrict expressive activity.

ACLF respectfully suggests that the "variable scrutiny" test of *Timmons v. Twin Cities Area New Party*, 117 S.Ct. 1364 (1997), and of other candidate or political party ballot access cases (*see Burdick v. Takushi*, 504 U.S. 428 (1992), *Anderson v. Celebrezze*, 460 U.S. 780 (1983)), has no applicability to review of the regulations challenged in this case. Candidate and political party ballot access cases traditionally evaluate the burden that election laws place on *associational and voting rights*, rights not expressly stated, but found to exist within the First Amendment framework. In that area, association and voting, this Court has afforded less protection than in the area of freedom of speech, assembly, and petitioning.

The 10th Circuit cited to the 11th Circuit case of *Biddulph v. Mortham*, 89 F.3d 1491 (11th Cir. 1996), for

support for the argument that states are allowed wide latitude in regulating the initiative process. But *Biddulph* (1) dealt with a challenge to initiative regulations where the challenger did not assert any infringement on his expressive rights; and (2) is the result of a serious misreading of this Court's holding in *Meyer v. Grant*.

The *Biddulph* Court found that only regulations on circulator speech were subject to strict scrutiny – otherwise, they held that a state has broad discretion in "administering" its initiative process. *Biddulph v. Mortham*, 89 F.3d 1491, 1500 (11th Cir. 1996). The *Biddulph* Court derived this conclusion from its reading of *Meyer v. Grant*, 486 U.S. 414 (1988), where it found support for a state being "generally free to regulate its own initiative process." *Id.*, at 1498.

But *Meyer* says no such thing. *Meyer* dealt with Colorado's prohibition of payment to petition circulators, and in *Meyer*, Colorado argued it was free to regulate the initiative process, since it was free not to have an initiative process at all: "Colorado contends that because the power of the initiative is a state-created right, it is free to impose limitations on the exercise of that right." *Meyer v. Grant*, 486 U.S. 414, 425 (1988). Colorado was relying on *Posadas de Puerto Rico Associates v. Tourism Co. of Puerto Rico*, 478 U.S. 328 (1986), in advancing this argument. *Id.* This Court (following Judge Holloway's opinion in *Grant v. Meyer*, 828 F.2d 1446 (10th Cir. 1987)) rejected that argument, calling Colorado's reliance on *Posadas*, "*misplaced.*" *Id.* Thus, the *Biddulph* Court's finding that *Meyer* supports a state's broad discretion to regulate the initiative process, is similarly mistaken. The rights of petitioners in placing a proposal before the voters derive –

not from the state's definition of procedures, as the *Biddulph* Court held, but, more importantly, from the First Amendment.

The fact that Florida or Colorado was not constitutionally required to have an initiative process, does not mean that the state has wide discretion in administering its initiative procedures, not when those procedures conflict with the First Amendment.

The plaintiff in *Biddulph* did not contend that Florida's procedures had a disparate impact on any particular viewpoint or that they allowed content based discrimination, or that they were applied in a discriminatory fashion, or that they burdened his exchange of ideas in furtherance of his proposal. *Biddulph, supra*, 89 F.3d at 1500. He really didn't bring a First Amendment challenge.

As ACLF has shown at trial, the voter registration requirement, the badge requirements and the reporting requirements, all burden petition proponents' expressive activity, and expressive activities of those who are, or would be, involved in petition circulation. Colorado's regulations also inhibit the right of peaceable assembly and the right to petition for redress of grievances, through this same restriction on expressive activity.

The *Biddulph* court also considered, and rejected, the idea that citizen initiatives implicate the Petition Clause of the First Amendment. *Biddulph, supra*, 89 F.3d at 1497. But the *Biddulph* court confused the question as to whether the Petition Clause implied the right to the initiative process (as does Colorado by not finding the right to initiative in the Constitution, Pet. Brief at 23), with the question as to whether the right of initiative, once

granted, implicates and invokes the protections of the Petition Clause. As the 10th Circuit held in *Grant v. Meyer*, 828 F.2d 1446 (10th Cir. 1987), once the right of initiative is recognized in Colorado, the state must allow the exercise of that right consistent with First Amendment protections. *Grant v. Meyer*, 828 F.2d 1446, 1455-56 (10th Cir. 1987). *Biddulph* observed that the plaintiff there had failed to show the relevance of the initiative to the Petition Clause, and found that it did not apply. Respondents herein do show the relevance.

When Jon Baraga and his supporters find restrictions against the use of marijuana offensive, or when Jack Hawkins and his supporters are fed up with worker's compensation laws they feel deprive workers of their rights, they have grievances. When they draft a petition, they propose a measure to redress their grievance: legalize marijuana or reform the worker's compensation laws. When they submit that petition to Colorado citizens to gather support, they are peaceably assembling to further their political aims, and they are engaging in political advocacy. When they gather sufficient signatures, they then *petition their government by presenting the petition to Colorado's voters for approval*. This entire process involves a petition for redress. Colorado voters, when voting on a proposed initiative, are the government, acting in their legislative capacity. They are then self-governing. *See* Art. V, sec. 1, Colo. Const. Presenting a petition for redress to one's government is an exercise of sovereignty and is precisely what the Petition Clause protects.

The Petition Clause was derived from the English right of petitioning, a right which originated with petitions to the King, then petitions from the Parliament to

the King, then petitions from the people to the Parliament. *See* Blackstone's *Commentaries*, bk. 1, ch. 1, sec. 3. The essence was not petitioning to "one's representatives," as the *Biddulph* court found (*see Biddulph, supra*, 89 F.3d at 1496), but *petitioning to the government*, as the plain language of the First Amendment makes clear. The King or Parliament may have claimed to represent all Englishmen, the founders certainly disputed the legitimacy of such claims. In this nation, the people are sovereign, and in the initiative process, they are the legislative branch of government.

As this Court has previously pointed out, the intent of the framers of the First Amendment was to create a broader system of rights than that enjoyed by British subjects: "No purpose in ratifying the Bill of Rights was clearer than that of securing for the people of the United States much greater freedom of expression, assembly, and petition than the people of Great Britain had ever enjoyed." *Bridges v. California*, 314 U.S. 252, 265 (1941).

Thus, this Court has previously found a wide variety of activities to constitute petitioning for redress of grievances, including: filing a complaint in court, where right of access to courts is an "aspect" of right of petition (*Bill Johnson's Restaurants, Inc. v. NLRB*, 461 U.S. 731, 741-743 (1983)); writing letter to the President criticizing a candidate for the position of United States Attorney (*McDonald v. Smith*, 472 U.S. 479, 485 (1985)); peaceful marching and demonstrating (*Edwards v. South Carolina*, 373 U.S. 229, 235 (1963)); boycotting white businesses as protest against racial inequality and racial injustice (*NAACP v. Claiborne Hardware*, 458 U.S. 886, 912 (1982)); where railroads were waging a publicity campaign against the

trucking industry, seeking to influence legislation and law enforcement activities, in manners harmful to the trucking industry, anti-trust laws not applicable (*Eastern Railroad Presidents Conference v. Noerr Motor Freight, Inc.*, 365 U.S. 127, 137 (1961)).

Contrary to what the *Biddulph* Court read in *Meyer v. Grant, i.e.*, that this Court did not refer to the Petition Clause (*Biddulph, supra*, 89 F.3d at 1497), this Court did indeed refer to that clause, not by name, but by quoting it:

> The First Amendment provides that Congress 'shall make no law . . . abridging the freedom of speech, or of the press; or the right of people peaceably to assemble, and to petition the Government for a redress of grievances.'

Meyer, supra, 486 U.S. at 420 (ellipses in original). ACLF presumes that this Court intended to convey and even emphasize the relevance of what was included in that quotation to the issues presented there, issues dealing with Colorado's initiative laws, by leaving out those portions of the First Amendment not considered relevant.

ACLF respectfully requests the Court now formally hold that the initiative and referendum process, once instituted in a state,[5] is protected by the First Amendment guarantees of free speech, peaceable assembly, and petitioning for redress of grievances. Intrusions on any of these expressive rights, which all involve core political

[5] Contrary to what Colorado argues, the state [government] didn't grant the right of initiative to its citizens. The people of Colorado, exercising their sovereignty, *reserved* the power of initiative and referendum. Art. V, sec. 1(1), Colo. Const.

activity, must be subject to exacting scrutiny, and found invalid absent a state showing the most compelling justification and proof that the restriction is narrowly tailored, reaching no more protected activity than is absolutely necessary.

The right to petition for redress of grievances, the right to peaceably assemble, and the right of free speech are "cognate rights." *Thomas v. Collins*, 323 U.S. 516, 530 (1945). Born of the same heritage, they are inseparable and should be treated with equal regard. *McDonald v. Smith*, 472 U.S. 479, 485 (1985). As this Court held in *Meyer*, restrictions on such "core political" rights are subject to strict scrutiny. First Amendment rights have a priority and

> That priority gives these liberties a sanctity and a sanction not permitted dubious intrusions. And it is the character of the right, not of the limitation, which determines what standard governs the choice [where individual freedom ends and where state power begins].

Thomas, 323 U.S. at 530.

This Court in *Meyer* did not endorse wide discretion for a state to regulate the initiative process. Such discretion was rejected by finding Colorado's reliance on *Posadas* "misplaced." The single issue presented in *Meyer* was the constitutionality of Colorado's suppression of speech through the ban on paying circulators. Colorado presented supposed justifications for its ban on paid petitioning: ensuring broad support and protecting the integrity of the process, and this Court found those justifications inadequate. *Meyer v. Grant*, 486 U.S. at 425.

Colorado asks the Court to review Colorado's regulations challenged herein utilizing the approach used in *Timmons*. The test used in *Timmons*, however, is inappropriate in this action. *Timmons* was a case dealing with associational rights and voting rights, the *rights of political parties, candidates, and voters – all in the context of candidate elections. See Timmons v. Twin Cities Area New Party*, 117 S.Ct. 1364, 1366 (1997) (in a political party's challenge to a state ban on more than one party nominating the same individual as its candidate, *i.e.*, "fusion," the court must determine whether a state election law violates First and Fourteenth Amendment associational rights). The test used there is commonly used by this Court in ballot access cases dealing with candidate- and political party-related issues. The rights this Court has analyzed in ballot access cases are primarily associational rights and voting rights. In that area, the area of candidate elections, this Court has developed a "variable scrutiny" test:

> [W]e weigh the character and magnitude of the burden the State's rule imposes on those rights against the interests the State contends justify that burden, and consider the extent to which the State's concern makes the burden necessary. Regulations imposing severe burdens on plaintiffs' [associational and voting] rights must be narrowly tailored and advance a compelling state interest. Lesser burdens, however, trigger less exacting review, and a State's important regulatory interests will usually be enough to justify reasonable, nondiscriminatory restrictions.

Id.

Ballot measure regulations have historically been judged by tougher standards. *Cf. Buckley v. Valeo*, 424 U.S. 1, 48-49 (1975); *First National Bank of Boston v. Bellotti*, 435 U.S. 765, 790-791 (1978); *Citizens Against Rent Control v. City of Berkeley*, 454 U.S. 290, 299 (1981); *Meyer v. Grant*, 486 U.S. 414, 425-428 (1988), all invoking strict scrutiny for any restrictions on expressive activities.

Ohio advanced similar arguments as Colorado offers here, in *McIntyre v. Ohio Election Commission*, 514 U.S. 334, 115 S.Ct. 1511 (1995). The Court found Ohio's analysis flawed:

> The "ordinary litigation" test does not apply here. Unlike the statutory provisions challenged in *Storer* and *Anderson*, § 3599.09(A) of the Ohio Code does not control the mechanics of the electoral process. It is a regulation of pure speech. Moreover, even though this provision applies evenhandedly to advocates of differing viewpoints, it is a direct regulation of the content of speech. Every written document covered by the statute must contain "the name and residence or business address of the chairman, treasurer, or secretary of the organization issuing the same, or the person who issues, makes, or is responsible therefor." Furthermore, the category of covered documents is defined by their content – only those publications containing speech designed to influence the voters in an election need bear the required markings. . . . Consequently, we are not faced with an ordinary election restriction; this case "involves a limitation on political expression subject to exacting scrutiny."

McIntyre, 514 U.S. at 345-346 (citations omitted).

The 10th Circuit used the *Timmons* test to evaluate some of the challenged statutory provisions in Colorado's initiative regulations, finding some regulations reasonable and for others it utilized strict scrutiny review. *See* generally, *American Constitutional Law Foundation v. Meyer*, 120 F.3d 1092 (10th Cir. 1997) (Pet. App. A). Registration of circulators, identification badges for circulators, and certain reporting requirements were struck down under strict scrutiny, while other restrictions were upheld as reasonable and non-discriminatory. (Plaintiffs concede that some initiative regulations can be no more than non-discriminatory, even reasonable, regulations related to ballot access and not impinging on First Amendment rights. Such a regulation is Colorado's requirement that petitioners show considerable support for a measure, through a showing of a certain number of petition signatures, in order to qualify for ballot placement. A reasonable word limit on the length of a ballot title may also be constitutionally permissible. But such regulations are not at issue in this case.) Colorado's challenged regulations all impinge directly on protected political speech. Most of these regulations (including badges and reports on paid petitioning) apply only to initiative petitions, not to candidate petitions, thus discriminating on the basis of the content of circulators' speech.

Where this Court has consistently required that strict scrutiny be applied, is where the state's regulation impinges upon, burdens, or suppresses political expression. Thus, in *Meyer*, the regulations which were struck down burdened "core political speech", trenching upon "an area in which the importance of First Amendment protections is 'at its zenith.' " *Meyer, supra*, 486 U.S. at

425. As a cognate right, the right of petitioning is entitled to the same protection.

There are many important and vital reasons why Colorado's badge, registration, and other similar intrusions in the petition process, cannot be upheld. ACLF and others in Colorado utilize the initiative process to engage in peaceable assembly and petitioning for redress of grievances. The initiative process is a peaceable mechanism for political change, an outgrowth of frustration with legislatures dominated by special interests. Populist reformers at the end of the last century and then Progressive reformers at the turn of the century introduced the initiative and referendum process as a counter to what were perceived as excessive influences of the wealthy and powerful over state legislatures. *Democracy by Initiative: Shaping California's Fourth Branch of Government*, 33-36 (Center for Responsive Government, 1992). "It was the intent of the Progressives to provide a means for citizens to overrule the influence of special interest groups and keep the government in check. . . . The initiative process was not meant to replace representative democracy but to supplement it." *Id.*, at 51. "[T]he initiative process was to act as a safety valve, enabling citizens to supplement the work of the legislature by initiating those measures which the legislature either viciously or negligently fails or refuses to enact." *Id.*, at 53. (Citation and internal quotations omitted).

Colorado (and other states, *see* Amicus Brief of the States) is now apparently worried about inadequate control over its initiative process. In recent years, Colorado citizens have adopted by means of citizen initiatives, limitations on future tax increases without voter approval

(Amendment 1, 1992), and term limits for state office holders (1990). *See* generally, Amicus Brief of Initiative and Referendum Institute. It is only natural that Colorado voters are utilizing the initiative to place limits on the power of their government. It is also only natural that those in state government resent these citizen-imposed limitations. Colorado's Attorney General, for instance, who represents Colorado in this case, is being forced out of office this year by citizen initiative-imposed term limits.

Governments don't voluntarily limit their own powers. "Power tends to corrupt. Absolute power corrupts absolutely." Lord Acton. What our founders knew, and made every effort to accommodate, was that independent checks on power were the only means to limit power. But the government they created was experimental, not a copy of any other government ever seen on earth, and not a finished product. They created a republic (coming from *res publica* – property of the people), a government based on the will of the people. The will of the people of Colorado – and those of 22 other states having initiatives – is that they reserved certain legislative power to themselves.

The initiative process is entirely consistent with our notions of a republican form of government. It is a safety valve and a supplement, designed to deal with issues the legislature will not, or cannot, address. Colorado's attempts to place the initiative process in a regulatory straight-jacket is inconsistent with the First Amendment protections for speech, peaceable assembly, and petitioning.

Further, Colorado is unwise in its regulations. The First Amendment protections invoked by ACLF are designed for peaceable actions. So long as citizens have meaningful peaceable means for redressing their grievances, there is no justification for resort to non-peaceable means. As Thomas Jefferson so eloquently stated in the *Declaration of Independence*, after a long history of repeated injuries and usurpations, when petitions were repeatedly rejected, when all peaceable means of redress were futile:

> [W]henever any form of government becomes destructive of these ends [to secure certain unalienable rights] it is the right of the people to alter or abolish it, and to institute a new government. . . . [W]hen a long train of abuses and usurpations, pursuing invariably the same object, evinces a design to reduce them under absolute despotism, it is their right, it is their duty, to throw off such government and to provide new guards for their future security.

Declaration of Independence.

Colorado is bound by the principles of the Declaration; it is the law of the land. The Enabling Act by which Congress authorized Colorado's entry into the Union, required Colorado's Constitution to be republican in form, and not to be repugnant to the United States Constitution *or to the principles of the Declaration of Independence*. Colorado Enabling Act, § 4, C.R.S. v. 1, pp. 24-27 (1997). Colorado's interference with the initiative process is repugnant to the principles of the U.S. Constitution and to those of the Declaration of Independence.

Curtailing the initiative process by means of eliminating First Amendment protections for its exercise, would be eliminating a popular check on Colorado's government. If the initiative process is upsetting to legislators, and to attorneys general, and to secretaries of state, and to governors, *that is only as it should be*. They aren't expected to like it. That indicates the initiative process is functioning as intended, as a check on their power.

Restricting or curtailing citizen initiatives would be a foolish governmental mistake. There are problems with our political system, and problems with our system of government. The major political parties are, at least temporarily, declining in importance, while the power of government has reached dimensions beyond anything ever envisioned by the Framers. In addition to a powerful democratic government, we now have what de Tocqueville feared would make the American republic into a "despotism . . . more intolerable than in any of the absolute monarchies of Europe", the all encompassing administrative state, intruding into every aspect of American life. *See Democracy in America*, 242 (Harper and Row, 1966).

While legislators seem to grow more impotent, special interests appear ever-more powerful, expending enormous sums and energy trying to harness the power of government at all levels. Special interests have learned – as de Tocqueville 160 years ago warned us they would – the power of democratic governments to dominate, to reward and to punish: "If ever freedom is lost in America, that will be due to the omnipotence of the majority driving the minorities to desperation and forcing them to

appeal to physical force. We may then see anarchy, but it will have come as the result of despotism." *Id.*, at 240.

Peaceable checks on political power, by such devices and institutions as separation of powers, federalism, separation of church and state, trial by [independent] jury (the jury's historical purpose being to resist oppression by the government), free press, free speech, freedom to petition – including citizen initiatives – have never been more important. Citizen control of the government and protection of individual rights and liberties are at stake. If these are lost, then peaceable means for redress will be eliminated.

Just as a decline in interest in the two major parties is symptomatic of problems with our system of government, and cannot be solved by state or federal regulations targeting the symptoms (the symptoms being more third parties and third party candidacies, fewer citizens registering with or identifying with the major parties), so too, the failure of legislative bodies to produce governmental reform satisfying to the citizens, which results in more interest and activity in citizen initiatives, cannot be cured by allowing states to suppress the political processes involved with initiatives.

Peaceable means for changing the government, for changing our governmental status quo, must be given the highest protections. The First Amendment demands that. An increasingly frustrated populace requires that.

The factionalism that Colorado sets up as a straw man (Pet. Brief at 23), the factionalism of pure democracies that most worried Madison, in *The Federalist No. 10*, has not materialized. The factionalism of pure

democracy does not bedevil us and will not result from the citizen initiative and referendum process, which supplements traditional legislative processes. Factionalism has instead appeared in a different form, as special interests have indeed seized the levers of power at all levels of government. From local developers to defense contractors to labor unions to environmentalists to international banking interests – every special interest is pressuring government for special privileges or advantages. The stakes are high and corruption is unavoidable in a political system where concentrated political power controls economic success and liberty itself. And, contrary to Madison's hopes, on which he based his optimism that we would avoid special interest domination, our elections do not seem to place in office the best, the brightest, and the most statesman-like of candidates.

Madison (or possibly Hamilton)[6] also anticipated the possibility that the majority itself might tyrannize over minorities. *The Federalist No. 51*. For protection against this tyranny, Madison (or Hamilton) was of the opinion that a multiplicity of interests [factions?] would be beneficial:

> The degree of security in both cases [for civil rights and for religious rights] will depend on the number of interests and sects; and this may be presumed to depend on the extent of the

[6] Had the Federalists been required to identify their authors by name, in order to publish their arguments, there would be no debate as to who authored *Federalist No. 51*. But then the debates on ratifying the Constitution might have been more personal, and less elevated. The Constitution as we know it might not have been ratified.

> country and number of people comprehended under the same government. . . . In a society under the forms of which the stronger faction can readily unite and oppress the weaker, anarchy may be as truly said to reign as in a state of nature, where the weaker individual is not secured against the violence of the stronger.

Id.

Madison (or Hamilton), speaking of the federal legislature, was deeply aware of the danger of too much power being concentrated in the legislature, hoping that the "remedy for that inconvenience is to divide the legislature into different branches. . . . " *Id.* But he was not guaranteeing that would be sufficient: "It may even be necessary to guard against further encroachments by still further precautions." *Id.*

Jefferson also warned against these same dangers: "The tyranny of the legislature is the most formidable dread at present and will be for many years. Letter from Jefferson to Madison, March 15, 1789 (citation omitted). The danger now lies in special interests vying for control of concentrated power, not in a multiplicity of checks on that power.

De Tocqueville in 1835 observed that America had a great protection against tyranny, even if its legislatures were to pass oppressive laws: "If the law were oppressive, liberty would still find some shelter from the way the law is carried into execution, and the majority would not know how to enter into the details and, if I dare call them so, the puerilities of administrative tyranny." *Democracy in America*, 242. De Tocqueville had no idea how firmly the administrative state would have taken root

in America, 160+ years later, rendering ineffective that "great protection against tyranny."

What Colorado seeks to impose, through its "reasonable regulations of the initiative process," is that administrative tyranny designed to, as de Tocqueville put it: "make all the citizens everywhere bow to its will in the same way and at the same time." *Id.*, at 241. This Court, however, has a Constitutionally-based obligation to protect the rights and liberties of respondents against the administrative despotism advanced by Colorado.

Citizens of 23 states have decided they needed protection against "further encroachments" from their state legislatures, and thus instituted some form of citizen initiative and referendum. Now these same citizens find they need First Amendment protection against state government encroachment on their rights of involvement in the initiative and referendum processes they created. Maintaining a free, self-governing society will always remain a work in progress.

II. COLORADO'S PROHIBITION OF PETITION CIRCULATION BY ANYONE OTHER THAN REGISTERED VOTERS IS A RESTRAINT ON SPEECH AND THE RIGHT OF PETITION.

Qualified electors (eligible to register as voters, but not registered) may not circulate petitions, non-residents may not circulate petitions, and citizens under 18 may not circulate petitions, seeking signatures from Colorado's citizens to place a ballot measure before Colorado's voters. As this Court held previously in *Meyer v. Grant*,

486 U.S. 414 (1988), petition circulation involves the advocacy of what the initiative proposes, it involves core political speech. It is also a part of ACLF's political actions in petitioning for redress of grievances. Any unqualified person (under 18 years of age, a non-resident, an unregistered elector) is guilty of a criminal offense for circulating a petition, if their action is willful. *See* C.R.S. §§ 1-40-112(1), 1-40-130(1)(h).

Thus, William David Orr ("David Orr"), who testified that he would like to circulate petitions, would have risked criminal punishment had he attempted to do so (he knew it was forbidden). Had he joined his father, Bill Orr, at a county fair booth, each seeking signatures on a petition they each supported, David and Bill Orr would each have been guilty of the criminal offense of willfully violating Colorado's prohibition against anyone but registered voters circulating petitions. Had they refused to wear Colorado's required identification badge, that might have been a second count for each in a criminal prosecution.

Colorado is clear in its wish to restrict circulation to registered voters so that it can more effectively police petition circulators. As Donetta Davidson, Colorado Elections Officer, explained at trial [discussing the benefits of requiring circulators being registered voters] in response to questions from Mr. Knaizer, Colorado Deputy Attorney General:

> A: [Discussing voter registration, which requires residency in Colorado] To be a resident of the state, it assures that – the ability of the

fraud aspect. It also addresses the miscommunication and the mistakes. And thirdly, the abuse issue.

Q: Okay. Now, with regard to those issues,. . . . Does the subpoena power of the Secretary of State extend beyond the state borders?

A: No, it does not.

Q: Okay. If there was a quesion regarding abuse, fraud, or mistake, would the Secretary have the ability to call in people via the subpoena power who were out of state to get them to testify?

A: They do not – we do not have that power.

Tr. II, at 100.

Colorado wants power, the power to subpoena ballot issue petition circulators to hearings, to investigate their conduct during petitioning. They want to be able to track petition circulators down, and force them to appear and answer for their petitioning conduct, including "miscommunication of issues." Colorado sees no offense against the First Amendment. In this nation, individuals don't need permission to engage in political discussions, they don't need to identify or explain themselves, they don't have to provide their addresses in advance, so that the government can track them down if someone complains about what they said. Colorado doesn't understand that; the Framers did.

Colorado's concern for the "integrity" of elections, cannot justify these restrictions, prohibitions, and criminal sanctions on petition circulation by persons who are not registered voters. The First Amendment rights of free

speech, assembly, and petitioning, are not reserved exclusively for registered voters, or exclusively for those over 18 years of age, or exclusively for persons who promise to remain within the subpoena power of Colorado.

Colorado attempts to justify this registered circulator requirement and its other invalidated regulations by arguing that they protect the integrity of the initiative process. Pet. Brief at 24. There is no integrity involved in criminalizing petitioning.

The examples of fraud presented by Colorado (and by *Amici* States supporting Colorado), are paltry in significance. Colorado found several instances of petition fraud during the past two decades. One instance involved a petition signing party (a roundtable event, where circulators take names from the phone book) in the early 80s. Tr. II, at 114. That initiative, dealing with legalizing gambling, was circulated with volunteer circulators, before this Court in 1988 invalidated Colorado's ban on paid petitioning. *Id.*, at 140. Other gambling issues had instances of petition fraud. *Id.* At trial, Colorado indicated that they had submitted nine possible episodes (involving nine individuals) of petition fraud for investigation in 1992, resulting in five prosecutions. *Id.*, at 143. The total number of signatures involved in 1992 might have been a few hundred, might have reached a few thousand. *Id.*, at 146.

Although no one should sanction fraud or perjury, there is an ancient principle of law which Colorado's fraud evidence brings to mind: *de minimis non curat lex*. On the basis of fairly trivial problems with five individuals, involving perhaps a few thousand signatures in

total (more than 50,000 valid are required for each initiative), Colorado would sacrifice the First Amendment protections of all petition circulators. Colorado can punish the abuse without curtailing the rights.

Colorado does not allege that petition fraud has caused any significant harm. And how could they, even if a measure had reached the ballot based on petition fraud, which Colorado does not allege has ever happened? Colorado's Supreme Court has spoken on these issues, in the context of a challenge to voter consideration of a constitutional amendment (before the right of citizen initiative was reserved):

> In the determination of these questions we ought constantly to keep in mind the declaration of the people in the [Colorado] bill of rights, "That the people of this state have the sole and exclusive right of governing themselves, as a free, sovereign and independent state; and to alter and abolish their constitution and form of government whenever they may deem it necessary to their safety and happiness;" and we should examine the objections which have been raised against the validity of this amendment from the viewpoint of a fair and liberal construction, rather than from that of one which unnecessarily embarasses the exercise of the right of amendment. As was said by Judge Handy in 1856, in delivering the opinion of the court in *Green v. Weller*, 32 Miss. 684: *"There is nothing in the nature of the submission which should cause the free exercise of it to be obstructed, or that could render it dangerous to the stability of the government;* because the measure derives all its vital force from the action of the people at the

> ballot-box, and *there can never be danger in submitting, in an established form, to a free people, the proposition, whether they will change their fundamental law.* The means provided for the exercise of their sovereign right of changing their constitution should receive such a construction as not to trammel the exercise of the right. Difficulties and embarrassments in its exercise are in derogation of the right of free government, which is inherent in the people; and *the best security against tumult and revolution, is in the free and unobstructed privilege to the people of the state, to change their constitution in the mode prescribed by the instrument."*

People ex rel. Elder v. Sours, 31 Colo. 369, 376-377, 74 P. 167, 169 (1903) [emphasis added].

III. COLORADO'S REQUIREMENT THAT PETITION CIRCULATORS WEAR IDENTIFICATION BADGES IS OFFENSIVE, AND IT IS A RESTRAINT ON POLITICAL SPEECH AND ACTION.

Colorado attempts to justify its requirement that *initiative petition* circulators wear identification badges, evading the First Amendment protection this court has found for anonymous political speech, in *McIntyre v. Ohio Election Commission*, 514 U.S. 334, 115 S.Ct. 1511 (1995). Colorado again attempts what it first tried in *Meyer v. Grant*, to persuade this Court that petition circulators are somehow administrative agents of the state. Pet. Brief at

39-40. If Colorado can accomplish this, then petition proponents will have no First Amendment protections. Colorado would then be free to proceed with a full-fledged circulator licensing scheme.

The fact that Colorado places adminstrative burdens on petition circulators may itself be problematic from a First Amendment perspective. If Colorado can control, and license, anyone involved in initiative circulation, the right to petition for redress would be meaningless, in this context. The chilling effects of forced identification are not speculative. These effects are known by common sense and historical and personal experience. Colorado's badge requirement reaches not only fraudulent initiative circulators, but all legitimate circulators, as well – but it reaches no candidate petition circulators. It cannot reasonably be denied, and has been established in the record, that there are many people who will avoid petition circulation if they are required to wear identification badges. To paraphrase this Court in *McIntyre*, "anonymous petitioning is not a pernicious, fraudulent practice, but an honorable tradition of advocacy and dissent." *McIntyre, supra*, 514 U.S. at 356. As Justice Thomas recounted in *McIntyre*, Federalist efforts to force disclosure of authorship in the press led to strong Anti-Federalist reactions on behalf of freedom of the press, followed by a quick retreat of the Federalists. *Id.* (J. Thomas, concurring), at 367. Protection of anonymous speech has important historical roots.

Colorado has different concerns. Again, they wish to police the activities of petition circulators. As Donetta Davidson, elections officer, explained the purpose of badges: "One, it shows the basis of who they are, and so

somebody can recognize the name and report that to the Secretary of State if there is a problem with the circulator." Tr. II, at 101. What kind of circulator problems is Colorado concerned with? Ms. Davidson: "The complaints was [sic] that they were being – *not giving it the right information, miscommunicating the issues, misleading the electors*, plus actually – actually trying to force him to sign petitions." *Id.*, at 102 [emphasis added].

And what was the result of these complaints before circulator badges were required? Ms. Davidson: "There was nothing we could do about the complaints. . . . We didn't have any idea of what the circulators' names were. They could not be identified. . . . [E]ven the ones that were brought up in hearings, there was no identification, even when they had pictures of the circulators." *Id.*

This testimony is a chilling example of Colorado's disregard for freedom of speech and for the right to petition for redress of grievances. What is even more disturbing, is that Colorado deliberately elicited this testimony, thinking it would prove useful in persuading this Court that its regulations were simply reasonable regulations of ballot access, where the Court should apply a "flexible standard of review." *See* Pet. Brief at 26.

The prospect of facilitating Colorado's desire to call petition circulators to account for misleading arguments, to parade circulators in front of Colorado's Secretary of State, under subpoena, so that they can attempt to satisfactorily explain – under threat of possible criminal punishment – why they misrepresented an initiative, or why they didn't use the state's preferred explanation of the effects of an initiative, should give this Court pause when

considering Colorado's arguments concerning the "reasonableness" of Colorado's regulations.

This Court has previously addressed the issue of forced identification, or registration, prior to engaging in public speech: "We think a requirement that one must register before he undertakes to make a public speech to enlist support for a lawful movement is quite incompatible with the requirements of the First Amendment." *Thomas v. Collins*, 323 U.S. at 540 (1945). "If the exercise of the rights of free speech and free assembly cannot be made a crime, we do not think this can be accomplished by a device of requiring previous registration as a condition for exercising them." *Id.*

Similarly, Colorado can't make petition circulation by persons not wearing badges, or by persons not registered to vote, illegal, invalid, and criminal, by the device of requiring the circulator to sign an affidavit. Colorado would ignore the advocacy role of the circulator, having given the circulators token state responsibility or authority (through the circulator affidavit), in order to license their political speech and activities: "They [circulators] are not simply advocates for a measure and *their critically important role in the initiative process more than obviates any advocacy interest circulators may have . . .* " Pet. Brief at 40 [emphasis added]. If the choice is between First Amendment protections for circulators and requiring circulators to execute an affidavit, as Colorado implies, then this Court should separate speech and state, thus also invalidating the affidavit requirement, something the 10th Circuit refused to do. Pet. App. A, at 42-44. Political speech tolerates no license.

IV. COLORADO'S REPORTING REQUIREMENTS REQUIRING REPORTS OF AMOUNTS PAID TO CIRCULATORS AND THE IDENTITY OF PAID CIRCULATORS, BURDEN FIRST AMENDMENT-PROTECTED ACTIVITIES.

Colorado has still not accepted its loss in *Meyer v. Grant*, in which this Court invalidated Colorado's ban on paid petition circulators. Now it attempts to expose and shame and intimidate paid circulators, through its badge requirements (paid petitioners' badges must say "PAID CIRCULATOR"), and through its reporting requirements requiring the disclosure of *the name and the business and residence address of all paid circulators* and the amounts paid to them. It is clear that Colorado wants to expose paid petitioners to retribution or retaliation or harassment and to brand these petitioners with a public brand of infamy, as PAID CIRCULATORS. Colorado doesn't like paid circulators.

Colorado argues that petition circulators have no right to object to identification badges, since they will ultimately be identified anyway when they execute the circulator's affidavit at the end of a petition. Pet. Brief at 43. (As discussed above, Colorado can't accomplish indirectly – extinguishing First Amendment protections for circulators – by means of the affidavit requirement, what it cannot accomplish directly.) Colorado cites to this Court's opinion in *Uphaus v. Wyman*, 360 U.S. 72 (1958), a case in which New Hampshire sought compelled corporate disclosure of the list of all attendees at a camp run by World Fellowship, Inc., a corporation suspected of subversive activities. Since World Fellowship was already required to disclose, as a hotel keeper, the names of all of its guests, the Court

> apparently [drew] some comfort from the New Hampshire lodging house registration statute for its conclusions about the lack of substantiality of the guest's interests in nondisclosure. Since the statute admittedly would not cover what the Attorney General desired to obtain and since the New Hampshire courts themselves did not rest on it, it is difficult to find any basis for this reliance.

Uphaus v. Wyman, 360 U.S. 72, 97 (1958) (J. Brennan, dissenting).

Likewise, it is difficult to find any basis for Colorado relying on dicta from *Uphaus*, where subversive activity was being investigated and the security of the state was at stake, leading the Court to find that the state's interest in survival was superior to the associational privacy interests of persons who had already made their identities public by signing a guest register. *See Id.*, at 81. ACLF's interests are not simply privacy interests and they are not as insubstantial as those of the guests of World Fellowship, World Fellowship's guests didn't have to wear identification badges or sign a guest register under oath, and Colorado's survival as a state is not threatened by the activities of unidentified initiative petition circulators.

Colorado's arguments justifying the requirement of identifying paid [initiative] petitioners in monthly reports are disingenuous. Colorado argues that "the essential purpose of the monthly reports is the identification of the circulators." Pet. Brief at 44. If that were true, then Colorado would also require monthly reports showing the activities of unpaid [initiative] circulators. The reporting

requirement struck down by the 10th Circuit only applies to petitions circulated by paid petitioners, and the only circulators who must be identified are paid [initiative] circulators. *See* C.R.S. 1-40-121. No similar reports are required for candidate petition circulators, whether paid or unpaid. Recall the testimony of David Aitken. Tr. I, at 115.

Colorado demonstrates its lack of a compelling interest and the under-inclusiveness of its regulations requiring these initiative reporting requirements, by not imposing similar requirements on paid and unpaid candidate petition circulators. Colorado did not attempt to show at trial that paid petitioners tended to be corrupt and that unpaid circulators were all honorable. Finally, the showing of isolated and insignificant examples of petitioning fraud, made without a showing of any harm resulting (except to an initiative proponent who loses signatures), cannot justify jettisoning the First Amendment.

CONCLUSION

The Court should affirm the Tenth Circuit's holding that Colorado's registration, badge, and reporting requirements are unconstitutional, violating First Amendment rights of free speech, assembly, and petitioning for redress of grievances. The Court should clarify that holding by further finding that Colorado's ban on underage circulators is unconstitutional (for the same reasons that banning any non-registered circulators is invalid), as is

the circulator affidavit requirement found in C.R.S. 1-40-111(2).

Respectfully submitted,

KERRY S. HADA*
KERRY S. HADA, P.C.
7450 East Progress Place
Englewood CO 80111
Telephone (303) 771-3030

PAUL GRANT, *Pro Hac Vice*
19039 E. Plaza Drive, # 260E
Parker CO 80134
Telephone (303) 841-9649

**Counsel of Record*

Attorneys for Respondents DAVID AITKEN, JON BARAGA, AND BILL ORR, as the Parent and Guardian of WILLIAM DAVID ORR